



U.S. Department
of Transportation

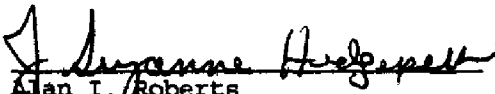
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 10469 (EXTENSION)
ORIGINAL January 11, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10469 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 18 1994

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

Zeneca, Inc
Wilmington, DE

May 5, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

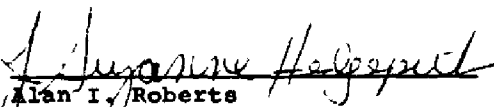
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 10469 (PTB)
ORIGINAL January 11, 1991

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 10469. The expiration date of the exemption for the party(ies) is August 30, 1994.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 27 1993

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

Zeneca, Inc.
Wilmington, DE

June 17, 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

DEC 9 1998

400 Seventh Street, S W
Washington, D C 20590

DOT-E 10469
(SECOND REVISION)

EXPIRATION DATE: November 30, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Zeneca Incorporated
Wilmington, Delaware
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of phosphorus trichloride in DOT Specification 105S300W tank car tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.244(a)
5. BASIS: This exemption is based on the application of Zeneca Incorporated dated December 9, 1997, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Phosphorus trichloride	6.1	UN1809	I

7. PACKAGING AND SAFETY CONTROL MEASURES.
 - a. Packagings prescribed are DOT Specification 105S300W tank car tanks.
 - b. Tank car tanks are equipped with safety relief valves meeting the requirements of Appendix A of the Association of American Railroads Specifications for Tank Cars.
 - c. Each DOT Specification 105S300W tank car shall be equipped with a thermal protection system that meets the requirements of Section 179.18 and Appendix B of Part 179 and a tank head puncture resistance system that meets the requirements of Section 179.16 and Appendix A of Part 179.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Tank car tanks must be marked "DOT-E 10469" in letters at least 4 inches high and 0.25 inches in width on a contrasting background above the DOT Specification number. Additionally, each tank car must be marked "INHALATION HAZARD" in letters at least four inches high on a contrasting background in close proximity to the required placards.

d. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a)(3):

e. In addition to the requirements of 49 CFR 171.15 and 171.16, the Associate Administrator for Hazardous Materials Safety (AAHMS) must be notified of any incident involving damage to the packaging or loss of contents of materials shipped under this exemption.

f. The AAHMS shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practicable after its occurrence.

g. The AAHMS must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of the material covered by this exemption. Failure to comply may result in the immediate suspension of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.10. MODAL REQUIREMENTS:

No modal-specific requirements are required by this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

12/9/98
(DATE)

DEC 9 1990

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-3665046.

Dist: FRA
PO:sln